

SENATE No. 1219

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick M. O'Connor

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to visitation rights of grandparents.

PETITION OF:

NAME:

Patrick M. O'Connor

DISTRICT/ADDRESS:

First Plymouth and Norfolk

SENATE No. 1219

By Mr. O'Connor, a petition (accompanied by bill, Senate, No. 1219) of Patrick M. O'Connor for legislation relative to visitation rights of grandparents. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1091 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to visitation rights of grandparents.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 39D of Chapter 119 of the General Laws, as appearing in the 2014 Official
2 Edition, is hereby amended by inserting after the word “court.”, in line 19, the following
3 sentence:-

4 Where the state has custody of a minor or a court has awarded temporary guardianship of
5 a minor to a non-parent, the court may consider whether the minor has a preexisting relationship
6 with a grandparent in determining if visitation rights would be in the best interest of the child;
7 provided, however, that such preexisting relationship shall not be a necessity for awarding said
8 visitation rights.